

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUBC039219: RONALD FAIR vs FORD MOTOR COMPANY, A DELAWARE
CORPORATION, et al.**

08/26/2026 in Department 44

**Motion to Compel FURTHER RESPONSES TO REQUEST FOR PRODUCTION FROM
DEFENDANT FORD MOTOR COMPANY, AND REQUEST FOR SANCTIONS**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

1. Plaintiff Ronald Fair’s Motion to Compel Further Responses to Requests for Production from Defendant Ford Motor Company
2. Plaintiff Ronald Fair’s Motion to Compel Further Responses to Special Interrogatories from Defendant Ford Motor Company

Tentative Ruling:

1. Plaintiff Ronald Fair’s Motion to Compel Further Responses to Requests for Production is GRANTED.

Within 20 days after service of notice of this ruling, Defendant Ford Motor Company shall serve verified, objection-free further responses to Request for Production Nos. 16-18, 20-30, 45-46, and 50-60. For each request as to which Ford has already produced responsive documents, Ford shall state whether compliance is complete and identify the

documents produced in response to that request. To the extent responsive documents have not yet been produced, Ford shall produce them concurrently with the further responses, subject to the existing protective order. As to Request No. 60, if no responsive destruction logs exist, Ford need not produce nonexistent documents but shall provide a response complying with Code Civ. Proc. § 2031.230. No relief is granted concerning Request for Production Nos. 47 or 49 because those requests are not included in the noticed motion.

2. Plaintiff Ronald Fair's Motion to Compel Further Responses to Special Interrogatories is GRANTED.

Within 20 days after service of notice of this ruling, Defendant Ford Motor Company shall serve verified, further responses, without objections, to Special Interrogatory Nos. 10, 26, 47, and 55-58. The responses shall be complete and straightforward and shall disclose all responsive information reasonably available to Ford. Ford may not rely upon Code Civ. Proc. § 2030.230 in lieu of answering because its right to exercise that option was waived under Code Civ. Proc. § 2030.290(a). As to Special Interrogatory No. 47, Ford shall provide responsive factual information concerning its preservation efforts; the interrogatory need not be construed as requiring Ford to set forth counsel's legal advice or mental impressions beyond the factual preservation information requested.

3. Plaintiff Ronald Fair's Requests for Sanctions in Connection with both discovery motions are GRANTED.

Monetary sanctions are awarded in the amount of \$2,400 for both motions jointly against Defendant Ford Motor Company and defense counsel, payable to Plaintiff's counsel within 30 days after service of notice of this ruling.

I. Background

A. Factual Background

Plaintiff Ronald Fair ("Plaintiff") alleges that on April 2, 2021, he purchased a 2021 Ford Super Duty F-350 for \$105,944.36 pursuant to a warranty contract with Defendant Ford Motor Company ("Ford"). (Compl., ¶ 16.) Plaintiff alleges that defects and nonconformities manifested during the express warranty period and substantially impaired the vehicle's use, value, and/or safety. (*Id.*, ¶ 17.) Plaintiff presented the vehicle to an authorized Ford repair facility, but Ford allegedly was unable to conform the vehicle to the warranty after a reasonable number of repair attempts. (*Id.*, ¶¶ 18-19.) Plaintiff further alleges that Ford failed to promptly provide replacement or restitution and that its failure to comply with the Song-Beverly Consumer Warranty Act was willful. (*Id.*, ¶¶ 20-22.)

B. Procedural Background

On October 16, 2025, Plaintiff served his First Set of Requests for Production, and his First Set of Special Interrogatories on Ford. Ford failed to timely respond. Plaintiff filed a motion to

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compel initial responses on November 20, 2025. Ford thereafter served unverified responses on November 26, 2025 and verifications on December 8, 2025.

Plaintiff sent a meet-and-confer letter on December 12, 2025 identifying the asserted deficiencies in Ford's responses and stating that Plaintiff was willing to enter the Los Angeles Superior Court Model Protective Order to facilitate production of confidential material. Plaintiff requested a response by January 2, 2026. Ford did not respond before Plaintiff filed these motions on January 22, 2026.

On June 11, 2026, the Court ruled on Plaintiff's earlier motions to compel initial responses. The Court denied those motions as moot because Ford had subsequently served responses, but expressly found that, because Ford's responses were untimely, Ford had waived its objections under Code Civ. Proc. §§ 2030.290(a) and 2031.300(a). The Court stated: "To the extent Defendant has asserted objections, Defendant may seek relief of court on the waiver issue." Nothing in the papers presently before the Court indicates Ford thereafter sought or obtained relief from that waiver.

The parties thereafter negotiated a stipulated protective order. Ford represents that on August 10 and 11, 2026, it produced, among other materials, its Warranty Policy and Procedure Manual for 2021-2025, 2025 RAV Policy and Procedure Manual, CRC policies and procedures for 2021-2025, and the Workshop Manual for the Subject Vehicle.

Ford filed oppositions to these motions on August 12, 2026. Plaintiff's August 19 replies dispute, among other things, that the RAV and CRC materials were included in Ford's August production. Ford's supporting declaration expressly states under oath that those materials were produced; Plaintiff's reply memorandum asserts otherwise but does not supply a declaration identifying the contents of the production. Regardless, supplemental production does not necessarily eliminate the issue whether Ford has provided Code-compliant written responses identifying what has been produced and whether production is complete.

II. Preliminary Matters

A. June 11, 2026 Ruling and Waiver of Ford's Objections

The June 11 ruling concerned the earlier motion to compel initial responses, not these motions to compel further responses. Thus, the present motions have not previously been adjudicated.

The June 11 order is nevertheless material because it determined that *Ford waived its objections by failing to serve timely responses*. Under Code Civ. Proc. §§ 2030.290(a) and 2031.300(a), an untimely responding party waives both (1) all objections, including privilege and work-product objections, and (2) the right to exercise the business-records option under Code Civ. Proc. § 2030.230. Relief from that waiver requires a motion and the statutory showing of substantial compliance together with mistake, inadvertence, or excusable neglect. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404, 408.)

Ford has not shown that the Court relieved it from the waiver. Accordingly, Ford cannot defeat the present motion by relying on the relevance, overbreadth, burden, confidentiality, attorney-client privilege, or work-product objections asserted in its untimely responses. Nor can Ford rely on Code Civ. Proc. § 2030.230 as a substitute for answering an interrogatory.

The waiver does not dispense with Plaintiff's affirmative obligation under Code Civ. Proc. §§ 2031.310(b)(1) and 2030.300 to demonstrate good cause for the requested production/further interrogatories.

B. Requests Nos. 47 and 49 Are Not Before the Court

The noticed motion seeks relief concerning RFP Nos. 16-18, 20-30, 45-46, and 50-60. Plaintiff's reply discusses RFP No. 47 and refers to Requests Nos. 49-54. Neither No. 47 nor No. 49 was included in the motion or moving separate statement.

No relief is ordered as to Nos. 47 or 49.

The reply brief's discussion of backup policies may instead be considered, where applicable, as argument concerning the Requests actually at issue, Nos. 50-54.

III. Discussion

A. Legal Standard

1. Further Responses to Requests for Production

A party may move to compel a further response where a statement of compliance is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection is without merit or too general. (Code Civ. Proc. § 2031.310(a).) The moving party must set forth specific facts showing good cause for the requested discovery. (Id., subd. (b)(1).) Once good cause is shown, the burden ordinarily shifts to the responding party to justify its objections. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

A statement of compliance must state that the production demanded will be allowed either in whole or in part and that all responsive documents in the party's possession, custody, or control to which no objection is made will be included in the production. (Code Civ. Proc. § 2031.220.) A representation of inability to comply must affirm a diligent search and reasonable inquiry and state the reason for the inability to comply. (Id., § 2031.230.)

The later production of documents does not necessarily divest the Court of authority to determine a pending discovery motion, particularly where the adequacy or completeness of the responses remains disputed. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, supra, 148 Cal.App.4th at pp. 408-409.)

2. Further Responses to Interrogatories

A party may move to compel a further response where an interrogatory answer is evasive or incomplete, an attempted exercise of the Code Civ. Proc. § 2030.230 business-records option is unwarranted or inadequately specifies the records, or an objection is without merit or too general. (Code Civ. Proc. § 2030.300(a).)

An interrogatory response must be “as complete and straightforward as the information reasonably available to the responding party permits,” and an interrogatory that cannot be answered completely must nevertheless be answered to the extent possible. (Code Civ. Proc. § 2030.220(a)-(b).) A party cannot plead ignorance of information reasonably obtainable from sources under its control; partial answers must disclose all information then available. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782-783.) Merely directing the propounding party to documents is inadequate unless the statutory business-records procedure is properly available and followed. (*Id.* at 784-785.)

Ordinarily, the responding party bears the burden of justifying an objection to an interrogatory. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.)

B. Plaintiff’s Motion to Compel Further Responses is Granted

1. Further Responses to Requests for Production

a. RFP Nos. 16-18 and 20-30

Good cause is shown.

No. 16 concerns the warranty applicable to the Subject Vehicle, and No. 18 concerns the Workshop Manual applicable to that vehicle. These materials bear directly upon Plaintiff’s allegations concerning the express warranty, the defects and nonconformities, and Ford’s inability to repair the vehicle. (Compl., ¶¶ 16-21.)

Nos. 17 and 20-30 principally seek Ford’s policies, procedures, training, and criteria concerning warranty claims and evaluation of Song-Beverly repurchase requests. Plaintiff alleges Ford’s failure to comply with the Act was willful. (Compl., ¶ 22.) Evidence of a manufacturer’s internal practices and policies governing repurchase determinations may bear upon whether its conduct was reasonable and in good faith. (*Kwan v. Mercedes-Benz of North America, Inc.* (1994) 23 Cal.App.4th 174, 185-186; *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1105.)

Ford’s subsequent production does not make the written-response issue moot. The protective order also eliminates the original practical impediment Ford identified to producing confidential materials.

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Ford must therefore provide verified, objection-free supplemental responses to each demand stating whether it has complied fully and identifying the documents already produced in response to each request. Any responsive documents not yet produced must be produced.

As to No. 25, if Ford cannot locate responsive scripts after a diligent search and reasonable inquiry, its further response may state an inability to comply in conformity with § 2031.230.

The motion is GRANTED as to Nos. 16-18 and 20-30.

b. RFP Nos. 45-46

No. 45 seeks documents sufficient to show complaints by owners of 2021 Ford Super Duty F-350 vehicles that were the same as or substantially similar to the complaints for which Plaintiff's vehicle was presented for repair. No. 46 similarly seeks documents sufficient to show substantially similar warranty repairs involving 2021 F-350 vehicles.

Good cause exists. Plaintiff alleges defects substantially impaired his vehicle's use, value, or safety, Ford was unable to conform the vehicle after reasonable repair opportunities, and Ford's failure to comply was willful. (Compl., ¶¶ 17-22.) Evidence concerning substantially similar problems in vehicles using the same component or system may be probative in a Song-Beverly action. (*Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 154-155.) The requests here are limited to the same model year and substantially similar complaints or repairs, rather than all Ford vehicles or all complaints.

Ford's objections are waived.

The motion is GRANTED as to Nos. 45-46.

c. RFP Nos. 50-59

Nos. 50-54 seek documents concerning Ford's backup policies for databases containing repurchase policies, customer call logs, customer complaints, technical-assistance cases, and warranty claims. Nos. 55-59 seek documents concerning retention policies for those same categories.

Plaintiff has made a sufficient, although less direct, showing of relevance. One of the parties' continuing disputes is whether Ford's production is complete. Record-retention policies can assist in assessing whether a reasonable search for responsive records was performed. (*County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 251-252.) Backup procedures similarly bear upon the existence and availability of electronically stored information where completeness of the production is disputed.

The discovery is limited temporally to 2021 forward, corresponding with the purchase of the Subject Vehicle and subsequent warranty period. Ford does not submit evidence quantifying the

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burden of producing the responsive policy materials. Moreover, the stipulated protective order addresses Ford's confidentiality concerns.

The Court does not treat Plaintiff's request as authorizing an unrestricted forensic examination of Ford's computer systems. The requests call for existing documents describing backup and retention policies; the order is accordingly limited.

The motion is GRANTED as to Nos. 50-59.

d. RFP No. 60

No. 60 seeks document/data destruction logs reflecting documents or data regarding the Subject Vehicle.

Ford responded that it would comply in full but that, after a "reasonable and diligent search," it located no responsive information because such information "does not or never existed," followed by objections.

Ford need not produce nonexistent documents. It must, however, provide an objection-free response that complies unequivocally with § 2031.230 by confirming that a diligent search and reasonable inquiry were conducted and specifying whether responsive destruction logs never existed, no longer exist, or are otherwise outside Ford's possession, custody, or control.

The motion is GRANTED as to No. 60 solely to require a Code-compliant, objection-free statement of inability to comply.

e. Sanctions

Code Civ. Proc. § 2031.310(h) requires monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses unless substantial justification or other circumstances make sanctions unjust.

Plaintiff expressly reduces the request in reply to \$2,104. Although the supplemental declaration contains an arithmetic inconsistency, \$2,104 is lower than both the original request and the amount that would result from substituting actual reply time for the originally estimated time.

Here, sanctions are warranted. Ford's responses were untimely; the Court expressly ruled on June 11 that Ford's objections were waived; and Ford nevertheless filed its August opposition relying extensively on those same objections without addressing the prior waiver determination or showing that relief from waiver had been obtained. Ford's later production narrowed the controversy but did not provide a basis for maintaining waived objections or eliminate the need for Code-compliant supplemental responses.

Sanctions are imposed jointly against Ford and defense counsel. The amount of the monetary sanctions requested, however, is not reasonable. The Court awards reasonable monetary sanctions in the amount of \$1,200.

2. Further Responses to Special Interrogatories

a. Special Interrogatory No. 10

No. 10 asks Ford, if it contends the Subject Vehicle does not qualify for repurchase under the Song-Beverly Act, to state all facts supporting that contention.

Ford responded principally by referring Plaintiff to categories of documents, including warranty materials, OASIS, GSAR and UDB information, repair records, technical service materials, and other records, and stated its investigation was continuing. Ford now argues that Code Civ. Proc. § 2030.230 permits this response.

First, Ford waived the right to use § 2030.230 when it failed to serve timely responses. (Code Civ. Proc. § 2030.290(a).) Second, even absent waiver, the response does not identify with sufficient specificity the particular writings and information from which the answer can readily be derived. (*Deyo*, supra, at 784-785.)

The interrogatory also goes directly to a central issue. Plaintiff alleges Ford was unable to conform the vehicle to warranty after a reasonable number of attempts and nevertheless failed to provide restitution. (Compl., ¶¶ 19-21.) Ford must state the presently known facts supporting its contrary contention.

A further response is compelled. The motion to compel is GRANTED as to No. 10.

b. Special Interrogatory No. 26

No. 26 seeks a description of training Ford provided from 2021 to the present concerning evaluation of prelitigation Song-Beverly repurchase requests.

Ford points to its warranty policy and procedure manuals and CRC policies and argues the information is contained in those documents. Ford also argues the discovery is irrelevant because Plaintiff did not make a prelitigation repurchase request.

Ford's objections were waived. Moreover, Plaintiff expressly alleges Ford's statutory noncompliance was willful. (Compl., ¶ 22.) Manufacturer practices and policies bearing upon evaluation of repurchase obligations may be relevant to willfulness. (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1105; *Kwan v. Mercedes-Benz of North America, Inc.* (1994) 23 Cal.App.4th 174, 185-186.) If no responsive training existed or no Ford employee evaluated a prelitigation request concerning this vehicle, Ford may say so, but it must provide a straightforward answer rather than rely on the waived § 2030.230 option.

The motion to compel is GRANTED as to No. 26.

c. Special Interrogatory No. 47

No. 47 asks Ford to describe its efforts to preserve relevant and discoverable information in this action, including preservation notices, the custodians to whom notices were directed, and steps taken to prevent deletion or destruction.

Ford asserted relevance, overbreadth, attorney-client privilege, work-product, confidentiality, and “discovery on discovery” objections. In opposition, Ford emphasizes that litigation holds are generated by attorneys and may reflect counsel’s selection of documents and mental impressions.

These objections were waived by Ford’s untimely response, and Ford has not sought relief from the waiver. In any event, No. 47 principally seeks facts concerning what preservation measures were taken, not counsel’s legal conclusions or litigation strategy. Ford can answer by identifying the preservation measures, dates, custodians, and other responsive factual information without unnecessarily reciting counsel’s legal advice.

The motion to compel is GRANTED as to No. 47.

d. Special Interrogatory Nos. 55-58

Nos. 55-58 concern Ford’s retention or destruction policies governing records relating to repurchase/replacement evaluations, customer call logs, technical-assistance matters, and warranty claims from 2021 to the present.

Ford relies on relevance, burden, proportionality, confidentiality, and privilege objections. These objections have been waived. In addition, record-retention policies may be relevant to evaluating whether a responding party reasonably searched for responsive information. (*County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 251-252.) Although *County of San Benito* arose in the public-records context, its discussion concerns application of the Civil Discovery Act and supports the narrower proposition for which Plaintiff relies upon it.

Ford has also provided no evidence quantifying any burden associated with simply answering these interrogatories. The requests seek descriptions of Ford’s policies, not forensic examination of Ford’s information systems.

The motion to compel is GRANTED as to Nos. 55-58.

e. Sanctions

Under Code Civ. Proc. § 2030.300(d), the Court must impose a monetary sanction against a party, person, or attorney who unsuccessfully makes or opposes a motion for further interrogatory responses unless the sanctioned party acted with substantial justification or other circumstances make sanctions unjust.

Plaintiff initially requested \$2,793. In reply, Plaintiff submitted a supplemental declaration reducing the requested amount to \$2,523 because counsel spent 1.4 rather than the anticipated 2.0 hours reviewing the opposition and preparing the reply.

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Sanctions are warranted. Most significantly, Ford filed its opposition after the Court had expressly ruled that Ford's untimely responses resulted in waiver of its objections, yet Ford's opposition continues to rely extensively upon those objections and does not address the June 11 waiver ruling or demonstrate that Ford obtained relief from waiver.

Sanctions are imposed jointly against Ford and defense counsel. The amount of the monetary sanctions requested, however, is not reasonable. The Court awards reasonable monetary sanctions in the amount of \$1,200.

Monetary sanctions in the amount of \$1,200 is ordered against Ford Motor Company.